

SOFILE — TERMS OF SERVICE

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Version: 2.0

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1. Introduction and Acceptance

These Terms of Service ("Terms") govern your access to and use of the Sofile platform, including all software, features, and services (collectively, the "Service"), operated by Sofile Tech LLC, a company registered in Yerevan, Armenia ("Sofile", "we", "us", or "our").

By creating an account or using the Service in any way, you agree to be bound by these Terms. If you do not agree, you must not use the Service.

These Terms apply to all users globally. Where mandatory local consumer protection laws grant you rights that conflict with these Terms, those laws take precedence to the extent required by law.

2. Description of the Service

Sofile is a cloud storage management platform that allows users to connect and manage third-party cloud storage providers (such as Amazon S3, Backblaze B2, Google Cloud Storage, IBM COS, Google Drive, Dropbox, and Microsoft OneDrive) through a unified interface within Adobe applications. The Service is distributed as an Adobe plugin available on Adobe Exchange (<https://exchange.adobe.com/apps/cc/108392>).

The Service provides tools for browsing, transferring, organizing, and managing files stored on connected third-party providers. Sofile does not host or store your media files. Your files remain exclusively on your chosen storage provider.

Technically, the Service connects to S3-compatible storage providers using the AWS SDK, and to other providers (Google Drive, Dropbox, Microsoft OneDrive, Google Cloud Storage, IBM COS, Backblaze B2) via their respective official APIs.

By using the Service, you acknowledge that certain operations — such as API requests to your connected storage providers — may incur charges imposed directly by those providers (for example, S3 request costs or egress fees). These charges are entirely between you and your storage provider. Sofile does not impose any additional fees for such operations and is not responsible for any costs charged by third-party storage providers.

The Service is licensed, not sold. Third-party storage providers are independent of Sofile. We are not responsible for their availability, performance, or data handling.

3. Eligibility

You must be at least 18 years of age and capable of entering into a legally binding agreement to use the Service. By using the Service, you represent that you meet these requirements.

4. Accounts

4.1 Registration

To use the Service, you must register for an account by providing a valid email address and creating a password. You are responsible for maintaining the confidentiality of your credentials and for all activity that occurs under your account.

4.2 Account Security

You agree to notify us immediately at info@sofile.io if you become aware of any unauthorized use of your account. We are not liable for any loss or damage arising from your failure to comply with this obligation.

4.3 Account Deletion

You may delete your account at any time via the "Delete my account" button in your account settings. Upon deletion, your account data (email, stored credentials) will be permanently deleted within 30 days, except where retention is required by law (for example, transaction records retained by Paddle for tax compliance purposes).

5. Subscription Plans and Pricing

5.1 Available Plans

Sofile offers the following subscription plans. The features included in each plan are described on our pricing page at www.sofile.io and may be updated from time to time at our discretion.

- Free — \$0/month, no time limit.
- Pro — \$25/month + applicable VAT and payment processing fees.
- Expert — \$65/month + applicable VAT and payment processing fees.

5.2 Free Trial

Users may request a 14-day free trial of the Pro plan by clicking the "Try Pro" button in the account panel or on the Sofile website. No payment information is required to start the trial. At the end of the trial period, your account automatically reverts to the Free plan. The trial is available once per user account. Subsequent subscriptions to Pro or Expert require payment.

5.3 Billing and Payment

All payments are processed by Paddle.com Market Limited ("Paddle"), our authorized Merchant of Record. Paddle is responsible for payment processing, invoicing, and VAT/tax collection. When you purchase a subscription, you are purchasing from Paddle. Their terms and privacy policy apply to payment transactions and can be found at paddle.com/legal and paddle.com/privacy.

Prices are displayed in USD. Paddle may display localized pricing in your local currency at checkout based on your location.

5.4 Automatic Renewal

Paid subscriptions automatically renew each month unless cancelled. You will receive a renewal reminder by email at least 7 days before your next billing date. You may cancel at any time via your account settings or the Paddle billing portal.

5.5 Cancellation

You may cancel your subscription at any time through the account panel. Cancellation takes effect at the end of the current billing period. You retain access to paid features until the end

of the period for which you have paid. Fees paid for the current period are non-refundable, except as required by applicable mandatory consumer law.

5.6 EU Users — Right of Withdrawal

The 14-day free trial is not a paid subscription and is not subject to the statutory right of withdrawal. No payment is taken during the trial period.

The statutory right of withdrawal applies to your first paid subscription purchase. If you are a consumer resident in the European Union, you have the right to withdraw from a paid subscription contract within 14 days of purchase without giving any reason. However, by starting to use the Service before the expiry of that 14-day period, you expressly request immediate performance of the Service and acknowledge that you will lose your right of withdrawal once the Service has been fully performed. Given that access to the Service is granted immediately upon payment, this waiver will typically apply from the moment you begin using the paid plan.

Withdrawal requests should be submitted to Paddle at paddle.net, as Paddle is the Merchant of Record for all transactions.

5.7 EU Users — Switching and Termination Rights (EU Data Act)

Users who are residents of the European Union have the right to terminate their subscription with a maximum notice period of 60 days, regardless of the original subscription length. This right cannot be waived by contract. Upon termination, you may request an export of your account data (email) by contacting info@sofile.io.

6. Connected Storage Credentials

To use the Service, you will provide credentials to connect your third-party storage accounts. These may include AWS Access Keys and Secret Keys, Backblaze application keys, IBM COS credentials, Google Cloud Storage keys, and OAuth 2.0 tokens for Google Drive, Dropbox, and Microsoft OneDrive.

All such credentials are encrypted at rest and in transit. They are used exclusively to perform the Service on your behalf and are never shared with third parties, sold, or used for any purpose other than executing your requested operations within the Service.

You are responsible for the validity and security of the credentials you provide. You should revoke and rotate credentials that you believe have been compromised. We recommend using credentials with the minimum permissions required for your workflow.

7. Acceptable Use

You agree not to use the Service to:

- Violate any applicable law or regulation.
- Infringe the intellectual property rights of any third party.
- Transmit malware, viruses, or any malicious code.
- Interfere with or disrupt the integrity or performance of the Service.
- Attempt to gain unauthorized access to any part of the Service or its related systems.
- Use the Service to store, distribute, or transmit content that is unlawful, harmful, threatening, abusive, or otherwise objectionable.

We reserve the right to suspend or terminate accounts that violate these rules.

8. Service Availability

We aim to make the Service available 365 days a year, 24 hours a day, with a target availability of 96%. This commitment applies to the Sofile platform only and does not include availability of third-party storage providers, which are governed by their own service terms. We may perform scheduled maintenance and will make reasonable efforts to notify users in advance where practicable.

9. Intellectual Property

You retain all rights to your content. We do not claim ownership of any files or data stored on your connected storage providers. You grant us a limited, non-exclusive license to access your content solely to the extent necessary to perform the Service.

The Sofile name, logo, software, and platform are owned by Sofile Tech LLC. You may not copy, modify, distribute, or reverse-engineer any part of the Service without our prior written consent.

If you submit feedback, ideas, or suggestions to us, you grant us a non-exclusive, royalty-free, perpetual, worldwide license to use such feedback for any purpose without compensation to you.

10. Disclaimer of Warranties

THE SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE" WITHOUT WARRANTY OF ANY KIND. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, WE DISCLAIM ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

We do not warrant that the Service will be error-free, uninterrupted, or free from harmful components. We do not make any representation about the reliability, accuracy, or availability of any third-party storage provider connected through the Service.

11. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, OUR TOTAL LIABILITY FOR ANY CLAIM ARISING OUT OF OR RELATED TO THE SERVICE IS LIMITED TO THE GREATER OF (A) THE AMOUNT YOU PAID TO US IN THE THREE MONTHS PRECEDING THE CLAIM, OR (B) USD \$50.

WE ARE NOT LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOSS OF DATA, LOSS OF PROFITS, OR BUSINESS INTERRUPTION, EVEN IF WE HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

Nothing in these Terms limits or excludes our liability for: (i) death or personal injury caused by our negligence; (ii) fraud or fraudulent misrepresentation; or (iii) any other liability that cannot be excluded or limited under applicable mandatory law, including mandatory consumer protection rights available to EU residents.

12. Indemnification

You agree to indemnify, defend, and hold harmless Sofile Tech LLC and its officers, directors, employees, and agents from any claims, damages, losses, and expenses (including reasonable legal fees) arising out of or related to: (i) your use of the Service; (ii) your violation of these Terms; or (iii) your violation of any third-party right, including intellectual property or privacy rights.

13. Termination

13.1 Termination by You

You may stop using the Service and delete your account at any time. Cancellation of a paid subscription does not entitle you to a refund of any prepaid fees, except as required by mandatory law.

13.2 Termination by Us

We may suspend or terminate your access to the Service at any time, with or without notice, if: (i) you breach these Terms; (ii) you fail to pay applicable fees; (iii) we are required to do so by law; or (iv) we elect to discontinue the Service in whole or in part. We will endeavor to provide reasonable advance notice of discontinuation where practicable.

13.3 Effect of Termination

Upon termination, your right to use the Service ceases immediately. Sections 9, 10, 11, 12, and 15 survive termination.

14. Changes to the Service and Terms

We may modify the Service or these Terms at any time. We will notify you of material changes by email or by posting a notice in the Service at least 14 days before the changes take effect. Your continued use of the Service after the effective date of changes constitutes your acceptance of the revised Terms. If you do not agree to the changes, you must stop using the Service before the effective date.

15. Governing Law and Disputes

These Terms are governed by and construed in accordance with the laws of the Republic of Armenia, without regard to its conflict of law principles.

In the event of a dispute, you agree to first contact us at info@sofile.io to seek an informal resolution. If the dispute is not resolved within 30 days, it shall be submitted to the exclusive jurisdiction of the Court of General Jurisdiction of the Kentron and Nork-Marash Administrative Districts of Yerevan, Armenia.

Notwithstanding the foregoing, if you are a consumer resident in a jurisdiction where mandatory local law grants you the right to bring proceedings in your local courts, or grants you consumer protection rights that cannot be waived by contract, those rights are not affected by this clause.

Claims must be brought within one year of the event giving rise to the claim, to the extent permitted by applicable law.

16. Force Majeure

Neither party shall be liable for delay or failure to perform obligations due to causes beyond their reasonable control, including acts of God, war, strikes, natural disasters, epidemics, pandemics, or government actions. If a force majeure event continues for more than 30 days, either party may terminate the affected service obligations with written notice.

17. Miscellaneous

- Entire Agreement: These Terms, together with the Privacy Policy, constitute the entire agreement between you and Sofile Tech LLC regarding the Service.

- Severability: If any provision of these Terms is found invalid or unenforceable, the remaining provisions continue in full force.
- No Waiver: Our failure to enforce any right or provision of these Terms shall not be deemed a waiver of such right or provision.
- Assignment: You may not assign your rights under these Terms without our written consent. We may assign our rights to a successor entity.

18. Contact

Sofile Tech LLC

59 Komitas, ap. 205, Yerevan, Armenia, 0014

Email: info@sofile.io

Website: <https://www.sofile.io>